

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4350**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 40111a (MCL 324.40111a), as amended by 2015 PA
265.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 40111a. (1) The commission, after consultation with the
2 commission of agriculture and rural development, shall issue in the
3 manner provided in section 40113a an order concerning deer and elk
4 feeding in this state. **Notwithstanding the order, an individual may**
5 **engage in wildlife and bird feeding if both of the following**
6 **conditions are met:**

7 (a) The feed is located within 300 feet of a residence.

8 (b) The quantity of feed placed, scattered, or distributed



1 within 300 feet of that residence, together with any feed
 2 previously placed, scattered, or distributed within 300 feet of
 3 that residence and still present, is not more than 2 gallons.

4 (2) Any feeding order issued under this section must comply
 5 with any United States Department of Agriculture standards or
 6 memorandum of understanding between state and federal agencies
 7 pertaining to the control of infectious diseases.

8 (3) ~~(2)~~ As used in this section, ~~"deer and elk"~~ **wildlife and**
 9 **bird** feeding" means ~~the~~ depositing, distributing, or tending of
 10 feed in an area frequented by ~~wild, free-ranging white-tailed deer~~
 11 ~~and elk~~ **birds and other wildlife** to prevent them from starving or
 12 for recreational viewing. ~~Deer and elk~~ **Wildlife and bird** feeding
 13 does not include any of the following:

14 (a) Baiting to take game as provided by an order of the
 15 commission under section 40113a.

16 (b) The scattering of feed solely as the result of normal
 17 logging practices or normal agricultural practices.

18 (c) The storage or use of feed for agricultural purposes if 1
 19 or more of the following apply:

20 (i) The area is occupied by livestock actively consuming the
 21 feed on a daily basis.

22 (ii) The feed is covered to deter wild, free-ranging white-
 23 tailed deer and elk from gaining access to the feed or is being
 24 used on a daily basis.

25 (iii) The feed is in a storage facility or is stored in a manner
 26 that is consistent with normal agricultural practices.

27 ~~(d) Feeding wild birds or other wildlife if done in such a~~
 28 ~~manner as to exclude wild, free-ranging white-tailed deer and elk~~
 29 ~~from gaining access to the feed.~~

